

115. Inquiry by railway administration. – Where no inquiry is held by the commissioner under Sub-section (1) of Sec. 114 or where the Commissioner has informed the railway administration under Sub-section (2) of that section that he is not able to hold an inquiry, the railway administration within whose jurisdiction the accident occurs, shall cause an inquiry to be made in accordance with the prescribed procedure.

Comments

Section 115 provides that in cases where the Commissioner does not hold an inquiry under Sec. 114 the same may be held by the railway administration.

116. Powers of Commissioner in relation to the enquiries. –(1) For the purpose of conducting an inquiry under this chapter into the causes of any accident on a railway, the Commissioner shall, in addition to the powers specified in sec. 7, have the powers as are vested in a civil court while trying a suit under the Code of Civil Procedure, 1908 (5 of 1908), in respect of the following matters, namely :-

- (a) Summoning and enforcing the attendance of persons and examining them on oath ;
- (b) Requiring the discovery and production of documents ;
- (c) Receiving evidence of affidavits ;
- (d) Requisitioning any public record or copies thereof from any court or office ;
- (e) Any other matter which may be prescribed.

(2) The Commissioner while conducting an enquiry under this Chapter shall be deemed to be a Civil Court for the purpose of Sec. And Chapter XXVI of the Code of Criminal Procedure, 1973(2 of 1974).

Comment

Section 116 empowers the commissioner with the powers of the Civil Court under the Code of Civil Procedure, 1908 (5 of 1908) in respect of the matters enumerated therein.

117. Statement made before Commissioner.- No statement made by a person in the course of giving evidence in an inquiry before the Commissioner shall subject him to, or be used against him in, any civil or criminal proceeding, except a prosecution for giving false evidence by such statement :